

serve a responsive pleading, such as an Answer, within **fifteen (15) days** after notice of entry of this order.

4. 9:00 AM CASE NUMBER: MSL17-02911
CASE NAME: MERCHANTS ACCEPTANCE VS SMITH
***HEARING ON MOTION IN RE: VACATE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Senekeya Smith (“Defendant”) filed a Motion to Vacate Default Judgment on November 7, 2025 (“Motion to Vacate Default Judgment”). The Motion to Vacate Default Judgment was set for hearing on December 9, 2025. The motion is opposed.

Background

Plaintiff and judgment creditor Merchants Acceptance Corporation (“Plaintiff”) filed a Complaint on July 21, 2017.

A Proof of Service of Summons was filed January 18, 2018 (the “1/18/18 POSS”). The 1/18/18 POSS reflects service on Defendant by **substitute service on August 8, 2017**, at 7:44 pm by delivery to a “JOHN DOE” who was described as a “CO-OCCUPANT.” 1/18/18 POSS at ¶¶3-5.

4. Address where the party was served:
349 FOXGLOVE STREET
PITTSBURG, CA 94565

5. I served the party

b.by substituted service. On (date): 08/08/17 at (time): 07:44 PM I left the documents listed in Item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
“JOHN DOE”
MALE AFRO-AMER 40 YRS 6’01” 190 LBS
CO-OCCUPANT

1/18/18 POSS, ¶¶4-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on February 15, 2018 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on March 13, 2018 (the “Default Judgment”) in the amount of \$2,821.76.

Defendant filed the Motion to Vacate Default Judgment in November 2025. The motion is supported by the Declaration of Senekeya Smith filed November 7, 2025 as part of the motion papers (the “Supporting Declaration”).

Plaintiff filed its Opposition to Defendant’s Motion to Vacate Default Judgment (the “Opposition”) on November 25, 2025. The Court notes that although the Opposition makes various factual averments, it was not supported by any proper declaration. The

Court will take the statements made as argument, based on what can be gleaned from the Court's record in this case.

The Court hereby takes judicial notice of the records contained in the Court's file to the fullest extent allowable by law. The Court may, in its discretion, take judicial notice of court records. Evid. Code, § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of each document in a court file, they may not take judicial notice of the truth of matters in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2025 Edition) § 7:12. The Court otherwise disregards any factual statements made in the Opposition and any attachments thereto other than court records.

Analysis

1. Defendant Fails To Demonstrate That Service Was Defective.

Defendant contends that Defendant "never received the summons or complaint in this case." See Supporting Declaration, Ins. 12-13. Defendant states that the person was served at a previous address in Pittsburg and that Defendant only became aware of the case in October 2025 when Defendant received notice of a writ of execution. *Id.* at Ins. 13-16.

13 summons or complaint in this case. The Proof of Service shows a "John Doe (Male)" served at my
14 previous address in Pittsburg, CA, five months after service was purportedly made. I moved to 1812 Mt.
15 Goethe Court, Antioch, CA on October 1, 2017, after the sale of my prior residence. I only became
16 aware of this case in October 2025 when I received notice of a new writ of execution. I was on maternity

Defendant also describes other life circumstances that "prevented [her] from acting earlier." *Id.* at Ins. 16-19.

As noted above, the service was done by a registered process server. 1/18/18 POSS, ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court does not find that the proffered evidence rebuts that presumption. No specific and credible evidence has been offered sufficient to rebut the process server's proof of service reflecting valid substitute service on Defendant. Nothing in Defendant's Supporting Declaration denies that Defendant was residing at the 349 Foxglove Street residence in Pittsburg at the time of the service on August 8, 2017. Indeed, Defendant recites that Defendant did not move Defendant's residence until October 1, 2017. Defendant does not otherwise provide specific and credible evidence sufficient to establish that Defendant was not properly served by substitute service on August 8, 2017.

2. Defendant Fails To Establish That The Default And Entry Of Judgment Thereon

Are Void.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

The evidence proffered by Defendant does not establish any grounds for the Court to conclude that the Default or the Default Judgment are somehow void. No extrinsic fraud or mistake is shown by the proffered evidence.

3. Defendant Fails To Establish That The Default and/or Default Judgment Resulted From Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

As discussed above, the evidence proffered by Defendant does not address the circumstances of the service and the failure to timely respond, much less make any factual showing of any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default. The relevant time period is that between the service in August 2017 and the entry of Default on February 15, 2018. However, Defendant’s Supporting Declaration quite literally says nothing about what was happening during that time period other than to recite the fact that Defendant moved after the service was done. Life circumstances occurring in 2024 and 2025 are not relevant to the failure to timely respond in 2017. Defendant has not shown the existence of any mistake, inadvertence, surprise, or excusable neglect on the

part of Defendant that led to the Default and/or Default Judgment.

4. Defendant Fails To Demonstrate That Defendant Did Not Have Actual Notice Of The Pending Lawsuit.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Defendant has not demonstrated a lack of actual notice in time to defend the action.

First, the Court does not find credible Defendant’s assertion that Defendant “only became aware of this case in October 2025...” See Supporting Declaration, Ins. 15-16. Court records show that, as early as 2019, Defendant was being served with judgment collection paperwork at the 1812 Mt. Goethe Court address in Antioch that she admits was her residence as of October 1, 2017. See e.g. Memorandum of Costs filed October 21, 2019; see Supporting Declaration, Ins. 14-15. This belies Defendant’s assertion that Defendant was not aware of the existence of the lawsuit until late 2025 and Defendant has not otherwise proffered persuasive evidence to demonstrate otherwise.

Second, and most importantly, as pointed out in the Opposition papers, the request to vacate the Default and Default Judgment on this ground is untimely. Relief under Code of Civil Procedure section 473.5 is time barred. See Code Civ. Proc. § 473.5(a) (“The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”). Defendant’s motion was brought more than two years after the entry of the subject Default Judgment. Indeed, the Default and Default Judgment were entered more than seven years ago. This would exceed even the longer outside time limits for cases involving a plaintiff “debt buyer.” See *id.* at § 1788.61(a)(2).

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Default Judgment is DENIED.

5. 9:00 AM CASE NUMBER: MSL21-03557
CASE NAME: BANK OF AMERICA, N.A. VS. JEFFREY KRATO
***HEARING ON MOTION IN RE: ORDER VACATING DISMISSAL AND ENTRY OF JUDGMENT FILED BY**
PLAINITFF ON 8/19/2025
FILED BY:
TENTATIVE RULING: